

Kailashben vs Patel on 3 September, 2010

Gujarat High Court Case Information System

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MCA/336/2008 3/ 3 ORDER

IN
THE HIGH COURT OF GUJARAT AT AHMEDABAD

MISC.CIVIL

APPLICATION - FOR TRANSFER No. 336 of 2008

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KAILASHBEN
HARJIBHAI MANILAL PATEL - Applicant(s)

Versus

PATEL
KRUSHNAKANT KHODIDAS - Opponent(s)

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Appearance :
MR
MANISH R RAVAL for Applicant(s) : 1,
NOTICE
SERVED for Opponent(s) :
1,

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CORAM

:

HONOURABLE

MR.JUSTICE DN PATEL

Date
: 04/03/2008

ORDER

1. Present application has been preferred under Section 24 of Code of Civil Procedure for transferring of Family Suit (Hindu Marriage Petition) No.1359 of 2007 instituted by the present respondent, who is husband of present applicant, under Section 13 (1) of Hindu Marriage Act, 1955 for restitution of conjugal rights, which is pending before the Court of learned Family Court, Ahmedabad to the Court of Principal Senior Civil Judge, Mehsana.

2. Though served, nobody appears on behalf of the opponent.

3. Having heard the learned counsel for the applicant and looking to the facts and circumstances of the case, the proceedings of Family Suit (Hindu Marriage Petition) No.1359 of 2007 is ordered to be transferred from the Court of learned Family Court, Ahmedabad to the Court of learned Principal Senior Civil Judge, Mehsana, mainly for the facts and reasons :

(i) It prima facie appears from the facts of the case that the respondent is husband of the applicant, who has instituted Family Suit (Hindu Marriage Petition) No.1359 of 2007 under Section 13 (1) of the Hindu Marriage Act for getting divorce before the Family Court, Ahmedabad.

(ii) It also appears from the facts of the case that present applicant is residing at village Chhalesara, Taluka Kadi, Dist. Mehsana and she has no means of livelihood.

(iii) It also appears from the facts of the case that the present applicant has to attend every date of adjournment at Family Court, Ahmedabad, which is approximately 125 kms. from her village Chhalesara.

(iv) It also appears from the facts of the case that the present applicant is having son aged about 12 years, arising out of wedlock between present applicant and opponent. Her son is studying in Std. 7. Thus, She has to attend every date of adjournment at Family Court at Ahmedabad with her minor son, which creates lot of difficulty on the part of present applicant.

(v) It appears from the facts of the case that one Criminal Misc.

Application No.65 of 2004 was also pending before the learned J.M.F.C., Kadi filed by the present applicant under Section 125 of Code of Criminal Procedure, for getting maintenance, in which

learned J.M.F.C., Kadi has passed an order on 12.10.2007, whereby the maintenance has been awarded to the present applicant . But the opponent is not paying this maintenance amount and therefore, the Recovery Application bearing Criminal Misc. Application No.206 of 2007 has been preferred by the present applicant under Sub-section 3 of Section 125 of Code of Criminal Procedure Code for recovery of maintenance. This is matter is pending before the learned J.M.F.C., Kadi. The applicant has no income source and she has also a son aged about 12 years.

4. As a cumulative effect of this facts and reasons and keeping in mind that the present applicant has no separate means of her livelihood, the proceedings of Family Suit (Hindu Marriage Petition) No.1359 of 2007 is ordered to be transferred from the Court of learned Family Court at Ahmedabad to the Court of learned Principal Senior Civil Judge, Mehsana. Necessary Record and Proceedings will be transferred by the Court of learned Family Court at Ahmedabad to the Court of learned Principal Senior Civil Judge, Mehsana as expeditiously as possible, so that Family Suit (Hindu Marriage Petition) No.1359 of 2007 can be disposed of by the Court at Mehsana. Rule is made absolute with no order as to costs. Direct service is permitted.

(D.N. PATEL, J.) ynvvas